

Tender Document for Supply and Installation for LED Luminaire Light

The Buyer invites E-Bids in Two Bid System (i.e. Technical/Documentary and Financial Bid) from eligible manufacturers, authorized distributors or dealers or any other agencies-authorized to quote through GeM portal on mutually agreed terms and conditions and satisfactory performance **Supply and Installation for LED Luminaire Light** as per below specification:

Technical Specification:

ક્રમ	સાધનો	ન્યુનતમ સ્પેશીફિકેશન
1	Product	LED Luminaire for Road and Street Lights (V2)
2	Quantity	425 Nos.
2	LED Rating (in Watts)/System Wattage/Rated Power	36W
3	Warranty for free replacement (in years)	2 Year or More
5	Luminaire System Efficacy (Lumen/watt)	>/= 100 Lm/Watt Or More
6	Ingress Protection (IP Rating) as per IS:10322 (Part 1):1982 latest	IP66 or Higher
7	Automatic Higher Cut off voltage above 300 volt	Yes
8	Input operating voltage range and frequency	140 to 270 Volts AC at 50 Hz +/-2
10	The luminaire body must be corrosion resistant powder coated	Yes
11	Protection of the entire housing(both LED section and driver section)as per IS:10322(Part 1):1982 latest	IP66 or Higher
13	Luminaries light transparency should be of Toughened glass	Yes
16	Number of electronic control gear (power supplies)	1 No. Or More
17	The Luminaires works on single phase three wires system (Phase, Neutral and Earth)	Yes
18	Provision of luminaire connecting wire along with the supply of material	100 cm Or More
19	Colour temperature	White 6500K
20	LED Make	OSRAM / NICHIA / CREE / SAMSUNG / SEOUL / LUMILEDS / PHILIPS / SYSKA / LUMENMAX / EVERLIGHT / EDISON / BRIDGELUX / NATIONSTAR / REFOND/APT
21	Other protection	Output Short Circuit Protection, Output Overload Protection, Input Over Voltage Protection, Input and Output Reverse Polarity and as per IS 10322/Part 5/Section 3
22	Optic lense material (UV stabilised)	Poly carbonate lense
23	Operating temperature range	-10 deg C to +55 deg C

24	The luminaire shall be protected against surges and transients (Internal)	>/=5KV
25	The luminaire shall be protected against surges and transients (External)	>/=10KV
26	Installation Details(Fabrication and Fittings)	0.5" Dia. Or Higher and 1.5 Foot Length or Higher GI Pipe and Clamp and Cable along with Proper Installation and Power supply with testing.

Eligibility Criteria: Prospective bidders must meet the following eligibility criteria:

1. Bidder must submit declaration that it is not black-listed by any central/state government/Public Sector Undertaking written on 300 Rs. Stamp paper. (Not Older than 3 Months)
2. GST Clearance Certificate, Tender without GST Clearance Certificate will be rejected.
3. Bidder or its OEM must have ISO 9001, LM 79 & LM 80, ISO CERTIFICATE, NABL TEST REPORT, CAT-3 R&B Approval, BIS Certificate.
4. OEM Authorization Certificate is to be submitted for LED, Pipe/bracket & Cable with BID Number.
5. Financial Criteria:- Bidder needs to have an annual average turnover of Min. 20.00 lakh (Average) last three financial years. CA Certified Turnover Certificate along with Networth Certificate of Last 3 Years.
6. Bidder's offer is liable to be rejected if they don't upload any of the certificates / Documents sought in the bid documents.
7. Only Gujarat State Parties liable to Participate in Bid along with Service Centre nearby of Kadi.
8. Bidder must have an office in Gujarat; submit the valid document with the office address for proof of office location.
9. Bidders must submit the product specification data sheet with sign stamp compulsory to accept the bid product's specification.
10. Bidder Need to Provide their financial Standing.
11. Bidder needs to provide 2 years of free replacement in warranty.
12. Bidder/OEM needs to have an single Purchase order & Completion certificate (CRAC) of min. 5.00 lakh of LED Street light on GEM portal.
13. Price (All Items LED, Pipe, Bracket, Cable etc.) inclusive of all taxes and with Supply and Installation to be quoted.
14. The bidder will be completely liable for replacement of product with manufacturing defects, damage during transportation or installation and product of poor quality during whole warranty period.
15. Bidder needs to submit GST, Pan Card, Cancel Cheque and EFT Mandate form.


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16. The Succesfull bidder will have to Supply and Installation of the Goods at different places as mentioned by the Taluka Panchayat, Kadi. And a certificate from the competent authority for Supply and Installation of goods Need to be Submit. Only then will the bidder be considered eligible for payment.

- **Scope of Work:** Supply and Installation of Led Luminaire Light at Various Location of Kadi Taluka.

Bid Opening and Evaluation: The selection committee will meticulously evaluate the submitted proposals, focusing on technical specifications, past performance, and financial feasibility. Additionally, compliance documents specified in the technical bid will be rigorously examined. The decision of the selection committee is definitive and binding, forming the basis for the contract award.

Bid Terms and Guideline for Document Preparation :

- **Corrigendum Acknowledgment:** Bidders are required to acknowledge any corrigendum published regarding the tender document before submitting their bids.
- **Understanding Tender Requirements:** Bidders are urged to carefully review both the tender advertisement and the tender document. It is crucial to understand the specific documents required for bid submission, including the number of volumes and documents, along with their names and content. Deviations from these instructions may result in bid rejection.
- **Bid Document Preparation:** Bidders should prepare the bid documents in advance as outlined in the tender document/schedule. Documents should preferably be in PDF format, scanned at 100 dpi with black and white settings.
- **Standard Bid Preparation:** Sellers must follow the standard bid preparation process and provide a detailed plan of the working methodology during the technical stage. Rates should be offered unconditionally and inclusive of all taxes. Any conditional submissions will lead to bid rejection. Bidders must quote rates on the GEM portal and in the Financial Bid Envelope. Any mention of price bid details in the technical bid will result in rejection.
- **No Conditional Offers:** Conditional offers or quotations will not be accepted. No variations in the terms and conditions of the tender, including deviations from standards, specifications, or terms of supply, will be allowed.
- **Penalties and Liquidated Damages:** In case of delays or non-compliance with the specified terms, penalties or liquidated damages may be imposed as per the terms and conditions outlined in the tender document
- **Bid Securing Declaration:** Bidders are required to availed Affidavit for Bid Securing Declaration, accepting that any withdrawal or modification of bids during the validity period, failure to sign the contract, or non-submission of performance security before the specified deadline will result in suspension for three (3) years from the disqualification date.
- **Standard Time Reference:** The server time displayed on the bidders' dashboard will be considered the standard time for referencing deadlines related to bid submission and bid opening. Bidders must adhere to this time during bid submission.
- **Document Accessibility:** Uploaded tender documents will only be accessible after the tender opening by authorized bid openers.
- **Bid Submission Confirmation:** Upon successful and timely bid submission, the portal will generate a bid submission confirmation message. A bid summary will be displayed,

indicating the bid number, date, and time of submission, along with other relevant details.

- **Prescribed Formats:** Bids must adhere precisely to the prescribed formats provided. Any modifications or rewording of formats will not be acceptable. Tenders must be submitted online on the Gem Portal. Resellers participating in the bid may utilize their OEM credentials, including quality documents, certificates, and past experiences.
- **Compliance and Timeliness:** Incomplete tenders, amendments, and additions made after the opening, as well as tenders submitted after the due date, will be disregarded. Sellers are responsible for ensuring sufficient warranty coverage for the product as per the tender requirements.

Right to Reject Offers:

- If the validity of registration of the Mfg or reseller unit of the tender item to be quoted by the bidder has expired, the bidders will be treated as unregistered unless he has applied for renewal of registration within the validity of the registration period.
- Not with standing anything contained in this Tender Document, the Buyer reserves the right to accept, or reject any or all Tender(s) and to annul the Selection Process, at any time without any liability or any obligation for such acceptance, rejection or annulment, and without assigning any reasons thereof.
- Scrutiny of the Tenders will be done as per terms & conditions of the tender, Govt. Resolutions issued from time to time and guidelines given in the manual of office procedure for purchase of stores by the Govt. Departments issued by GeM and Government of Gujarat.
- In the first instance only the "Technical Bid" (online) containing Technical supporting documents will be opened by any buyer officer, on the date of opening of the tender and taken into consideration for finalization.. Bid Inviting Authority, or his authorized representative (s) has the right to inspect the factories/store of Bidders, before, accepting the rate quoted by them, or before releasing any purchase order(s), or at any point of time during the continuance of Bid and also has the right to reject the Bid or terminate/cancel the purchase orders issued and or not to reorder, based on adverse reports brought out during such inspections
- Bid scrutiny process is organized for once only by the Technical committee. Seller needs to read the document carefully and provide the desired document in one attempt only, detailed clause specific compliance need to provide in technical stage.
- The seller must diligently address and prevent any conflict of interest during the bidding process. To ensure this, the seller is required to submit an Undertake Document along with the technical bids. This document serves as a formal commitment from the seller, confirming that they do not have any conflicts of interest that could influence or compromise the integrity of the bidding process. By submitting this document, the seller affirms their adherence to ethical standards and fair competition, promoting a transparent and unbiased tendering procedure.

Clarification on Tender Document:

- **Amendment of Tender Document :** At any time prior to the deadline for submission of Tender, the Buyer may, for any reason, whether at its own initiative or in response to clarifications requested by a Tenderer, modify the Tender Document by the issuance of Addendum/ Amendment. The Seller declares that no previous transgressions occurred in the last three years with any Government Organization that could justify his exclusion from the bid process.
- All such amendments will be notified through Gem Portal to all Tenderers who have downloaded the Tender Document by online portal gem.gov.in. The amendments will be posted Only on the Official Website www.gem.gov.in along with the revised Tender Document containing the amendments and will be binding on all Tenderers. Declaration need to submit regarding Non-engagement of child labour.


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- In order to afford the Tenderers a reasonable time for taking an amendment into account, or for any other reason, the Buyer may, in its sole discretion, extend the Tender Submission Date.
- After the technical representation, the buyer may ask for design or/and detailed workflow in soft copy or other way. Only that seller will mark as qualified bidders, whose details match with buyer's expectation.
- Cost involved in submitting the bids, attending the tender opening meeting, arrangements for the demonstration/presentation etc. shall be borne by the bidder. Seller needs to provide Bank mandate form latest after bid publish Date.
- Seller needs to provide confirmation regarding provision of technical assistance where by buyer shall undertake on-site technical support whenever required. Necessary warranty bond affidavit Needs to provide in bid.
- During evaluation and comparison of bids, the purchaser may, at his discretion, ask the bidder for clarifications on the bid. The request for clarification shall be given in writing by registered/speed post, asking the tenderer to respond by a specified date, and also mentioning therein that, if the tenderer does not comply or respond by the date, his tender will be liable to be rejected. Depending on the outcome, such tenders are to be ignored or considered further. No change in prices or substance of the bid shall be sought, offered or permitted. No post-bid clarification at the initiative of the bidder shall be entertained. The shortfall information/documents should be sought only in case of historical documents which pre-existed at the time of the tender opening and which have not undergone change since then. These should be called only on basis of the recommendations of the TC. (Example: if the Permanent Account Number, registration with sales tax/ VAT has been asked to be submitted and the tenderer has not provided them, these documents may be asked for with a target date as above). So far as the submission of documents is concerned with regard to qualification criteria, after submission of the tender, only related shortfall documents should be asked for and considered. For example, if the bidder has submitted a supply order without its completion/performance certificate, the certificate can be asked for and considered. However, no new supply order should be asked for so as to qualify the bidder.
- Evaluation of Techno-commercial Bid : In evaluation of the techno-commercial bid, conformity of the eligibility/qualification, technical and commercial conditions of the offered goods to those in the bid document is ascertained. Additional factors, if any, incorporated in the tender documents may also be considered in the manner indicated therein. Evaluation has to be based only on the conditions included in the tender document and any other condition should not form the basis of this evaluation
- Evaluation of eligibility/ qualification Criteria: Procuring Entity will determine, to its satisfaction, whether the tenderers are eligible, qualified and capable in all respects to perform the contract satisfactorily. Tenders that do not meet the required eligibility/qualification criteria prescribed will be treated as unresponsive and not considered further. This determination will, inter-alia, take into account the tenderer's financial, technical and production capabilities for satisfying all of Procuring Entity's requirements as incorporated in the tender document. Such determination will be based upon scrutiny and examination of all relevant data and details submitted by the tenderer in its/his tender as well as such other allied information as deemed appropriate by Procuring Entity
- Evaluation of Technical Suitability: The description, specifications, drawings and other technical terms and conditions are examined by TC in general and a technical member of the TC in particular. Nobody outside the TC should be allowed to determine this evaluation. The tender document should clearly state whether alternative offers/makes/models would be considered or not and, in the absence of an express statement to the effect, these should not be allowed. An important document is the exceptions/deviation form submitted by the tenderer. It is important to judge whether an exception/deviation is minor or major. Minor exceptions/deviations may be waived provided they do not constitute any material deviation and do not have significant financial impact and, also, would not prejudice or affect the ranking


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order of the price bid. Exceptions/deviations should not grant the tenderer any undue advantage vis-à-vis other tenders and Procuring Entity

- Normally, the comparison of the responsive tenders shall be on total outgo from the Procuring Entity's pocket, for the procurement to be paid to the supplier or any third party, including all elements of costs as per the terms of the proposed contract, including any taxes, duties, levies etc, freight insurance etc. Therefore it should normally be on the basis of CIF/ FOR destination basis, duly delivered, commissioned, as the case may be: Product must contain local content as per set by GOI (Class 1) an affidavit for local content needs to be provided in technical bid.

Signing and Sealing of Tender:

- The seller is required to provide a notarized affidavit confirming that they have fully read and thoroughly understood the tender requirements. The affidavit must state that the seller accepts all terms and conditions of the tender, including any corrigendum or addendum issued, if any.
- All the copies of the tender shall be duly signed at the appropriate places as indicated in the TE documents and all other pages of the tender including printed literature, if any, shall be initialled by the same person(s) signing the tender. The tender shall not contain any erasure or overwriting, except as necessary to correct any error made by the tenderer and, if there is any such correction; the same shall be initialled by the person(s) signing the tender.

Corrupt or Fraudulent Practices:

- It is required by all concerned to observe the highest standard of ethics during the procurement and execution of such contracts. The purchaser (b) will reject a proposal for award if it determines that the Tenderer recommended for award has engaged in corrupt or fraudulent practices in competing for the contract in question; (c) will declare a firm ineligible, either indefinitely or for a stated period of time, to be awarded a contract by the purchaser if it at any time determines that the firm has engaged in corrupt or fraudulent practices in competing for, or in executing the contract. Seller needs to undertake for non- conviction in bid while submit the documents.

Inspection, Testing and Quality Control :

- The purchaser and/or its nominated representative(s) will, without any extra cost to the purchaser, inspect and/or test the ordered goods and the related services to confirm their conformity to the contract specifications and other quality control details incorporated in the contract. The purchaser shall inform the supplier in advance, in writing, the purchaser's programme for such inspection and, also the identity of the officials to be deputed for this purpose. Integrity Pact guidelines "The Buyer" And "The Seller" hereby agree not to indulge in any corrupt practices including without limitation any activity or action to influence the transaction on any aspect of contract and commit to take all measures necessary to prevent corruption maintaining complete transparency and fairness in all activities related to GeM. Users agree to follow and adhere with the Integrity Pact guidelines. An Undertake certificate for integrity pact need to be provided in bid. The Item supplied should be brand new and should be installed/commissioned at the locations specified by Consignee at no extra cost. This office is not bound to provide any mode of transport in respect of men or material required for the contract. Bidder needs to ensure the Quality manufacturing, detailed Step for Quality plan needs to be provided with bid.

Termination for insolvency:

- If the supplier becomes bankrupt or otherwise insolvent, the purchaser reserves the right to


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terminate the contract at any time, by serving written notice to the supplier without any compensation, whatsoever, to the supplier, subject to further condition that such termination will not prejudice or affect the rights and remedies which have accrued and / or will accrue thereafter to the Purchaser/Consignee. If the Seller makes incorrect statement on this subject, he can be disqualified from the bid process and action can be taken as per the procedure mentioned in "Incident Management Policy". Seller needs to submit latest Bank Solvency certificate in proof of financial standing.

Force Majeure:

- Notwithstanding the provisions contained in TED the supplier shall not be liable for imposition of any such sanction so long the delay and/or failure of the supplier in fulfilling its obligations under the contract is the result of an event of Force Majeure
- For purposes of this clause, Force Majeure means an event beyond the control of the supplier and not involving the supplier's fault or negligence and which is not foreseeable and not brought about at the instance of, the party claiming to be affected by such event and which has caused the non-performance or delay in performance. Such events may include, but are not restricted to, acts of the Purchaser/Consignee either in its sovereign or contractual capacity, wars or revolutions, hostility, acts of public enemy, civil commotion, sabotage, fires, floods, explosions, epidemics, quarantine restrictions, strikes excluding by its employees, lockouts excluding by its management, and freight embargoes
- If a Force Majeure situation arises, the supplier shall promptly notify the Purchaser/Consignee in writing of such conditions and the cause thereof within twenty-one days of occurrence of such event. Unless otherwise directed by the Purchaser/Consignee in writing, the supplier shall continue to perform its obligations under the contract as far as reasonably practical, and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event
- If the performance in whole or in part or any obligation under this contract is prevented or delayed by any reason of Force Majeure for a period exceeding sixty days, either party may at its option terminate the contract without any financial repercussion on either side
- In case due to a Force Majeure event the Purchaser/Consignee is unable to fulfil its contractual commitment and responsibility, the Purchaser/Consignee will notify the supplier accordingly and subsequent actions taken on similar lines described in above sub- paragraphs

Other Important Terms

- If dispute or difference of any kind shall arise between the Purchaser/Consignee and the supplier in connection with or relating to the contract, the parties shall make every effort to resolve the same amicably by mutual consultations. The jurisdiction for the settlement of disputes will be at the office of The Buyer.
- The seller is required to provide a notarized affidavit on a stamp paper of INR 300, confirming non-blacklisting status and demonstrating financial standing.
- If the parties fail to resolve their dispute or difference by such mutual consultation within twenty one days of its occurrence, then, unless otherwise provided in the SCC, either the Purchaser/Consignee or the supplier may give notice to the other party of its intention to commence arbitration, as hereinafter provided the applicable arbitration procedure will be as per the Arbitration and Conciliation Act, 1996 of India. In the case of a dispute or difference arising between the Purchaser/Consignee and a domestic Supplier relating to any matter arising out of or connected with the contract, such dispute or difference shall be referred to the sole arbitration of an officer, appointed to be the arbitrator by the buyer.


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- Original Power of Attorney or other proof of authority of the person who has signed the Tender OR copy of Power of Attorney attested by a Gazetted Officer or a Notary Public in proof of the authority of the person who has signed the Tender
- Prices - The vendors are required to quote prices as per GEM general terms and condition (Financial Bid). The quoted rates shall be inclusive of all taxes, duties, Goods and Service Tax (GST) etc. as applicable and no extra cost shall be payable on this account.
- The seller is required to provide an Anti-Profitteering Certificate under the Goods and Services Tax (GST) regulations. This certificate serves as a declaration that the seller will comply with the anti-profitteering provisions outlined in the GST laws. Anti-profitteering measures are in place to ensure that businesses pass on the benefits of reduced tax rates or input tax credit to consumers by lowering prices or maintaining the same prices after the implementation of GST-related reforms.


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